

Anshuman Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 14 July 2023 · 2023:AHC:139835-DB · Writ C No. 19231 of 2023 · **Writ disposed with leave to approach the Electricity Ombudsman.**

HEADNOTE

A writ against the Gorakhpur District Electricity Consumer Grievances Redressal Forum's order, with a prayer to restrain recovery of the electricity bill, was disposed of with leave to approach the Electricity Ombudsman under clause 7.10(4) of the Electricity Supply Code, 2005. The bill and the Forum's order were not decided.

FACTUAL SUMMARY

Anshuman Singh challenged the order dated 19 March 2022 of the President, District Electricity Consumer Grievances Redressal Forum, Gorakhpur, in Case No. 64 of 2019 against the Executive Engineer, and sought a direction that recovery of the electricity bill not proceed under an order dated 19 March 2020. On 31 May 2023 the petition was adjourned to 7 July 2023. Counsel for the respondents then objected that an efficacious remedy lay before the Electricity Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Ombudsman remedy against a District Forum order

HOLDING

On the objection that clause 7.10(4) of the Electricity Supply Code, 2005 gives an efficacious remedy before the Electricity Ombudsman against the District Forum's order, and the petitioner's request for leave to use it, the writ was disposed of with that leave, without any finding on the bill or the Forum's order. ¶ 3-5

FLAG Order cites clause 7.10(4). Catalogued sub-clauses are 7.10(i) to 7.10(iv); the arabic numeral is left as stated.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ against the District Forum's order was disposed of with leave to approach the Electricity Ombudsman under clause 7.10(4), without a decision on the electricity bill. ¶ 3-5

clause-7.10-forum-ombudsman-route-for-billing-grievances The petitioner, already before the District Consumer Grievances Redressal Forum on the bill, was left to the Ombudsman stage of the clause 7.10 route. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DISTRICT FORUM ORDER DATED 19 MARCH 2022 AND OF RECOVERY OF THE ELECTRICITY BILL

Left open for the Electricity Ombudsman. The writ records leave and does not affirm or set aside either order. ¶ 2-5